



United States
Attorney's Office
Western District of New York



Plaster's union member sentenced for defrauding health care plan

Tuesday, October 14, 2025

For Immediate Release

U.S. Attorney's Office, Western District of
New York

BUFFALO, N.Y. - U.S. Attorney Michael DiGiacomo announced today that Toby Weatherbee, 49, of Pike, NY, who was convicted of theft or embezzlement in connection with health care, was sentenced to serve two years' probation and pay restitution totaling \$44,012 by U.S. District Judge Richard J. Arcara.

Assistant U.S. Attorney Sasha Mascarenhas, who handled the case, stated that between April 2019, and October 2022, in the Western District of New York, Weatherbee was a member of Plaster's Local Union #9, which maintained a health care benefit program designed to reimburse union members for legitimate and valid out of pocket medical expenses. In May 2021, Weatherbee submitted a fraudulent invoice from Dansville Dental Professionals, LLP., in the amount of \$6,720.00 to the health and welfare fund, converting for his own use funds belonging to the health and welfare fund. In total, between April 2019, and October 2022, Weatherbee submitted a total of 12 fraudulent invoices totaling \$44, 012.

The sentencing is a result of an investigation by the U.S. Department of Labor, Employee Benefits Security Administration.

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PRESS RELEASE

Federal grand jury indicts Pittsford father and son on multiple fraud and ID theft charges in credit card scam

U.S. Attorney Michael DiGiacomo announced today that a federal grand jury has returned a 19-count indictment charging Talib Hussain, 75, and Mirza Khan, 48, both of Pittsford, NY, with conspiracy...

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PRESS RELEASE

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U.S. Attorney Michael DiGiacomo announced today that Christopher Hernandez, 31, of Bergen, New Jersey, pleaded guilty before U.S. District Judge Frank P. Geraci, Jr. to fraudulent production of more than...

August 4, 2026



Western District of New York

